SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 01/20/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. on the court day before the hearing if oral argument is requested and include specification to be argued.

Zoom hearing information
https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00982
CASE NAME: WELLS FARGO BANK, N.A. VS. FRANCES ADAMI
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT AND OF NONAPPEARANCE**
FILED BY: WELLS FARGO BANK, N.A.
****TENTATIVE RULING:****

Background

Plaintiff filed a request to set aside and dismiss without prejudice the Judgment – entered August 1, 2025 - because the Defendant filed for bankruptcy on July 10, 2025.

Analysis

A party can move to set aside a judgment that is otherwise void under Section 473(c) of the Code of Civil Procedure (CCP).

When bankruptcy proceedings have begun in federal court, the superior court lacks jurisdiction, thus, any judgment rendered by the superior court would be void.

Further, a plaintiff can request voluntary dismissal of an action, before trial, under Section 581(b) of the CCP.

Disposition

Plaintiff's motion is granted.

Plaintiff to file Order.

2. 9:00 AM CASE NUMBER: L24-02704
CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ
***HEARING ON MOTION IN RE: MOTION AND MOTION TO VACATE DEFAULT JUDGMENT**
FILED BY: MUNOZ, NICOLE
****TENTATIVE RULING:****
Background

Defendant filed a Motion to Vacate Default Judgment (Motion) on December 18, 2025, with an accompanying proof of service by mail, filed on December 22, 2025, indicating service on December 19, 2025, on Plaintiff who has a mailing address out of state. The hearing is scheduled for January 20, 2026.

The Motion is unopposed, yet the service does not appear to be timely. Section 1005 of the CCP requires notice of 16 court days for motions, and Section 1013 requires an additional 10 calendar days for mail service on parties outside of California. This would leave January 26, 2026, as the earliest date this motion could be heard (January 24th, which is a Saturday, is technically the first day after 16 court days and 10 calendar days).

Disposition

The Motion will be continued approximately 30 to 60 days to enable Plaintiff to respond.

3. 9:00 AM CASE NUMBER: L24-05975
CASE NAME: LOAN ASSET ISSUER LLC SERIES 2021 M 2 VS. CRISTINA PITA
***HEARING ON MOTION IN RE: FOR ORDER DEEMING EACH REQUEST FOR ADMISSIONS ADMITTED; AND REQUEST FOR SANCTIONS**
FILED BY: LOAN ASSET ISSUER LLC SERIES 2021 M 2
****TENTATIVE RULING:****
Plaintiff filed, on November 3, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff also seeks sanctions in the amount of $60. Plaintiff attached a proof of service.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id*. There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

In this matter, while Plaintiff did not include the particular admissions at issue in their moving papers, they did include them in Exhibit A of their Proposed Order, which was timely filed and served on the Defendant. Moreover, the Proposed Order included proof of service indicating that Plaintiff properly served Defendant with the initial Request for Admissions.

Moreover, the Plaintiff included a declaration justifying the sanction amount of $60.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's Proposed Order (filed November 3, 2025) shall be deemed admitted.

Plaintiff to draw and electronically file Order.

4. 9:00 AM CASE NUMBER: L24-09645
CASE NAME: WELLS FARGO BANK, N.A. VS. RAMIRO FLORES
***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS; MPA; REQ FOR JUDICIAL NTC; NTC OF LODGING; JUDGMENT**
FILED BY:
TENTATIVE RULING:*

Plaintiff filed a Motion for Judgment on the Pleadings on October 13, 2025, (Motion), as well as a Request for Judicial Notice (Judicial Notice). The Motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that there is only one cause of action (Breach Of Contract) listed in the Complaint.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al*., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of $11,588.57 on a credit card account. See Complaint filed September 13, 2024, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Plaintiff also provided a declaration indicating costs totaling $430.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered September 16, 2025 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, $11,588.57. See Deemed Admitted Order.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Breach of Contract
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint
3. Defendant became indebted in the amount of $11,588.57 on the subject credit card account, which amount is due and owing to Plaintiff.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file electronically their Proposed Order for signature.

5. 9:00 AM CASE NUMBER: L24-10899
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. ANGAD SINGH
***HEARING ON MOTION IN RE: FOR ORDER AMENDING DEFAULT JUDGMENT**
FILED BY: AMERICAN EXPRESS NATIONAL BANK
****TENTATIVE RULING:****

I. Background

Plaintiff American Express National Bank (Amex) filed this limited civil action against defendant Angad Singh to recover amounts allegedly due on a credit card account. The complaint, filed December 11, 2024, prayed for damages in the amount of $12,853.55, plus costs.

Defendant failed to respond to the complaint, and the clerk entered defendant's default on May 8, 2025. On September 11, 2025, the clerk entered a default judgment in favor of plaintiff in the amount of $10,792.57. According to plaintiff, the judgment understated the amount owed because plaintiff's counsel mistakenly credited payments to which defendant was not entitled.

On October 30, 2025, plaintiff filed the present motion seeking relief under Code of Civil Procedure (CCP) section 473(b), supported by a declaration of counsel admitting the error in calculating credits and requesting correction of the judgment amount.

II. Analysis

A. Scope of Relief Available Under CCP Section 473(b)

Plaintiff's motion is made pursuant to CCP section 473(b), which provides for both discretionary and mandatory relief from a default or default judgment. The statute states, in pertinent part:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

"[W]henever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

Plaintiff's motion was timely made less than six months after entry of default on May 8, 2025. Plaintiff filed the present motion on October 30, 2025, which is within the six-month jurisdictional period. The motion is supported by a declaration of counsel attesting that the error in the judgment amount resulted from counsel's mistake.

Though the motion is timely, the court declines to grant relief under this section. Section 473(b) authorizes the court to vacate a judgment entered as the result of mistake, inadvertence, surprise, or excusable neglect. Where relief under section 473(b) is granted, the court's authority is limited to vacating the default and/or default judgment. (See, e.g., *Bowman v. Bowman* (1947) 29 Cal.2d 808, 813; *Olson v. Olson* (1957)148 Cal. App. 2d 479, 487-478.) Relief under section 473(b) restores the parties to the procedural position they occupied before entry of the default such that the case returns to a pre-judgment posture, and defendant necessarily regains the procedural rights attendant to that posture, including whatever time and opportunity the law affords to seek relief from default or otherwise respond.

Here, Plaintiff does not ask the court to set aside the default and default judgment so that the matter may proceed on the merits through the submission of a new request for entry of default and default judgment application, or other further proceedings. Instead, Plaintiff seeks to amend the existing judgment to include a revised damages calculation based on counsel's declaration. No authority is cited holding that this relief is available under CCP section 473(b).

B. Plaintiff's Authorities Do Not Establish a Clerical Error or Authority to Amend the Judgment

Although the motion requests relief under CCP section 473(b), Plaintiff relies primarily on cases addressing correction of clerical errors. Those authorities do not support the relief requested here because this case does not involve a clerical error of the type recognized in the case law.

Wilson v. Wilson (1948) 88 Cal.App.2d 382, for example, did not involve relief under CCP section 473(b), but rather the correction of a clerical error apparent on the face of the record. There, the final decree failed to carry out a binding antecedent judicial decision—specifically, the appellate court's order on remand requiring the disposition of community property—which rendered the omission clerical rather than judicial. There is no comparable clerical error here. The default judgment in this case accurately reflects the damages and credits presented to the court at the time the judgment was entered. The asserted error arises from counsel's miscalculation, not from a failure of the judgment to conform to a prior judicial ruling or a result compelled by law.

Martin v. Martin (1970) 2 Cal.3d 752 is also inapposite. In that case, which involved a bankruptcy, the error corrected nunc pro tunc was clerical because the written discharge order failed to reflect a judicial determination already made by the bankruptcy court. Before the discharge issued, the bankruptcy referee had expressly determined that Robert Martin's monthly payment obligation to Maxine Martin was nondischargeable under section 17(a) of the Bankruptcy Act. The referee intended the discharge to exclude that obligation. Nevertheless, the discharge entered in the case failed to incorporate the referee's prior ruling. The referee later found that the omission occurred "through a clerical mistake by one of the clerks," and corrected the discharge *nunc pro tunc* so that the record would "actually speak the truth"—*i.e*., to reflect what the court had already decided.

Although Plaintiff's motion does not rely on CCP sections 473(a)(1) or 473(d), the Court has considered whether either provision would authorize the relief requested and finds that neither applies.

Section 473(d) authorizes correction of clerical mistakes in a judgment or order. It is elementary that "[a] court can always correct a clerical, as distinguished from a judicial error which appears on the face of a decree by a nunc pro tunc order. [Citation.] It cannot, however, change an order which has become final even though made in error, if in fact the order made was that intended to be made." (*Estate of Eckstrom* (1960) 54 Cal.2d 540, 544.) In *Tokio Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp.* (1999) 75 Cal.App.4th 110, the court elaborated on this point: "The test which distinguishes clerical error from possible judicial error is simply whether the challenged portion of the judgment was entered inadvertently (which is clerical error) versus advertently (which might be judicial error, but is not clerical error). [Citation.] Unless the challenged portion of the judgment was entered inadvertently, it cannot be changed post judgment under the guise of correction of clerical error." (*Id*. at 117.)

Thus, the Court does not have unrestricted authority to reverse an order it intended to make but later determines to be erroneous. (*Bell v. Farmers Ins. Exchange* (2006) 135 Cal.App.4th 1138, 1144; see also *People v. McGee* (1991) 232 Cal.App.3d 620, 626.) The default judgment in this case accurately reflected the damages and credits presented at the time, and the asserted error arises solely from counsel's misstatement of those amounts, not from any failure of the judgment to conform to the court's intended result. Such error is not clerical within the meaning of section 473(d).

CCP section 473(a)(1) also does not provide authority to amend the judgment. Subdivision (a)(1) permits amendment of "any pleading or proceeding" in furtherance of justice, but that language does not reasonably encompass a final judgment. Judgments are addressed separately in subdivisions (b) and (d) of section 473, each of which authorizes post-judgment relief only in defined circumstances and subject to specific limitations.

III. Disposition

Plaintiff cites no authority holding that a court may amend or correct a judgment, *nunc pro tunc* or otherwise, under these circumstances. Therefore, the motion is **denied**.

Plaintiff shall file Order reflecting denial.

6. 9:00 AM CASE NUMBER: L25-00112
CASE NAME: LVNV FUNDING LLC VS. SHARA LUCIDO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
<u>*TENTATIVE RULING</u>

Counsel for Defendant has filed a Motion to be Relieved as Counsel and has properly noticed the Defendant.

The Motion is unopposed.

<u>Analysis</u>

Under Rule 1.16(b) of the California Rules of Professional Conduct, an attorney can move to withdraw from representing a client if the client has made it unreasonably difficult for the attorney to effectively represent the client; or, the client breaches a material term of the agreement related to the representation.

In this matter, Counsel has alleged that the Defendant has not responded to numerous attempts to communicate and has also failed to pay.

Disposition

The court grants Counsel's request to be relieved.

Counsel for Defendant shall file the Order.

7. 9:00 AM CASE NUMBER: L25-03269
CASE NAME: CAPITAL ONE N.A. VS. DOUGLAS LINARES
***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**
FILED BY: CAPITAL ONE N.A.
****TENTATIVE RULING:****

Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). Plaintiff attached a proof of service.

Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

No response has been filed by the Defendant.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id*. There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Analysis

The court makes the following findings:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Attachment One to Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to prepare the Order.

8. 9:00 AM CASE NUMBER: L25-03299
CASE NAME: JPMORGAN CHASE BANK N.A. VS. STEVEN MERCER
***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**
FILED BY: JPMORGAN CHASE BANK N.A.
<u>*TENTATIVE RULING:*</u>

Plaintiff has filed a Motion to Set Aside Dismissal and Enter Judgment under terms of Stipulated Agreement (Motion). Plaintiff has also requested for the court to take Judicial Notice of an agreement between Plaintiff and Defendant.

The Motion is unopposed.

<u>Analysis</u>

In this matter, the court issued an order, on September 3, 2025, dismissing the action in an agreement between the parties under Section 664.6 of the Code of Civil Procedure, as well as retaining jurisdiction under that same agreement. Though the action was dismissed, the agreement - attached as Exhibit A to Plaintiff's request for Judicial Notice, and also filed on September 3, 2025 – called for the court to retain jurisdiction until December 2, 2027, and issue judgment in favor of the Plaintiff in the amount of $9,711.26, should the Defendant default on payment.

The Plaintiff, by declaration included in their Motion, represented that Defendant made no payments toward the balance.

<u>Disposition</u>

Plaintiff's Motion is Granted.

Plaintiff to prepare the Order.

9. 9:00 AM CASE NUMBER: L25-04747
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
***HEARING ON MOTION FOR DISCOVERY TO DEEM MATTERS ADMITTED**
FILED BY: JPMORGAN CHASE BANK N.A.
<u>*TENTATIVE RULING:*</u>

In both matters, Plaintiff filed, on December, 4, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). In both matters, Plaintiff attached a proof of service for this Motion, as well for Request for Admission.

The motions are identical and only differ in docket number.

In both matters, Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

In both matters, Defendant filed a Response. The Responses were identical.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); St. Mary v. Superior Court, supra, 223 Cal.App.4th at 776; see also CJER, California Judges Benchbook: Civil Proceedings - Discovery (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

Analysis

In the instant matters, the Defendant responded that he in fact provided discovery responses to the Plaintiff; however, the responses were to the Plaintiff's set of Interrogatories. There was no indication that Defendant provided a response to Plaintiff's Request for Admission.

Disposition

The court finds that Defendant is making a good faith effort to respond to Plaintiff's requests in that it appears he did make partial responses to Plaintiff's discovery requests. The court also notes that Defendant is self-represented.

The court will continue this motion for 30 days, to give the Defendant the opportunity to substantially comply with the Requests for Admission.

10. 9:00 AM CASE NUMBER: L25-04755
CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS
***HEARING ON MOTION FOR DISCOVERY**
FILED BY: JPMORGAN CHASE BANK N.A.
<u>*TENTATIVE RULING</u>

On December, 4, 2025, In both matters, Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion). In both matters, Plaintiff attached a proof of service for this Motion, as well for Request for Admission.

The motions are identical and only differ in docket number.

In both matters, Plaintiff attached the particular facts at issue in their Attachment One to Exhibit One.

In both matters, Defendant filed a Response. The Responses were identical.

Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); St. Mary v. Superior Court, supra, 223 Cal.App.4th at 776; see also CJER, California Judges Benchbook: Civil Proceedings - Discovery (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

Analysis

In the instant matters, the Defendant responded that he in fact provided discovery responses to the Plaintiff; however, the responses were to the Plaintiff's set of Interrogatories. There was no indication that Defendant provided a response to Plaintiff's Request for Admission.

Disposition

The court finds that Defendant is making a good faith effort to respond to Plaintiff's requests in that it appears he did make partial responses to Plaintiff's discovery requests. The court also notes that Defendant is self-represented.

The court will continue this motion for 30 days, to give the Defendant the opportunity to substantially comply with the Requests for Admission.

11.   9:00 AM   CASE NUMBER: L25-05488
CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ
***HEARING ON MOTION IN RE:**
FILED BY:
****TENTATIVE RULING:****

Parties were ordered to appear on January 20, 2026, to address status of whether Defendant has served on Plaintiff substantially compliant responses to Plaintiff's discovery request.

Disposition

No Tentative Ruling will issue.

Parties must appear.

12. 9:00 AM CASE NUMBER: L25-06376
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DARRYL REED
***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS**
FILED BY: JEFFERSON CAPITAL SYSTEMS LLC
****TENTATIVE RULING***

Plaintiff filed a Motion for Judgment on the Pleadings on October 17, 2025, with an accompanying Proof of Service. The Motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Defendant, in his Answer filed August 8, 2025, marked the box indicating that all of the statements of the Complaint are true.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al*., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of $2,761.12 on a credit card account.

Defendant's Answer admits that the statements in the Complaint are true.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. No costs are fees were specifically alleged, so to the extent that the Plaintiff's Motion is a request for fees, that is denied without prejudice. Plaintiff can file a subsequent request on this issue.
2. Plaintiff shall file the Order.

13. 9:00 AM CASE NUMBER: L25-10978
CASE NAME: EMILIO RUBIO VS. WILLARD STARK
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
****TENTATIVE RULING:****
Disposition

Upon review of Petition to Approve Compromise of Pending Action, which included medical records of the injury to the minor Plaintiff, the court approves the Compromise.

Plaintiff shall draw and file the Order approving the Compromise.

Moreover, the court approves the Order to Deposit Funds in the Blocked Account on behalf of the minor Plaintiff, as filed by Plaintiff on December 31, 2025.

14. 9:00 AM CASE NUMBER: MSL21-00864
CASE NAME: INVESTMENT RETRIEVERS VS. RIVAS
***HEARING ON MOTION IN RE: FOR ORDER IMPOSING TERMINATING SANCTION AGAINST DEFENDANT FOR FAILURE TO OBEY ORDER COMPELLING RESPONSES**
FILED BY: INVESTMENT RETRIEVERS, INC.
****TENTATIVE RULING:****
Background

Plaintiff filed, on October 29, 2025, a Motion for an order imposing a terminating sanction against Defendant for failure to obey a court order compelling discovery responses.

The Motion is unopposed.

Analysis

The court has the discretion to order terminating sanctions if a misuse of the discovery process is found. CCP § 2023.030(c). CCP § 2030.290(c) and CCP § 2030.300(c) state in pertinent part: "If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010)."

The court has held that terminating sanctions have been appropriate when a respondent "tendered discovery responses that submitted no meaningful information, repeatedly ignored meet and confer letters, continued to parrot the same answers after two orders compelling it to give responses, and propounded no discovery of its own until faced with a motion for terminating sanctions." Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc., 163 Cal. App. 4th 1093 (Cal. App. 3d Dist. 2008).

However, trial courts are to use such a sanction sparingly, especially when used as a first measure, and should often consider less severe alternatives in a first attempt to prod a party to comply. Lopez v. Watchtower Bible and Tract Society of New York, Inc. (2016) 246 CA4th 566, 604.

In the instant matter, the Defendant has failed to follow the court's order to respond to Plaintiff's discovery request, an order that was issued on July 22, 2024, and required compliance within 20 days. No response has been provided by Defendant in well over a year.

Yet this is the court's first impression of this request since the court's own order compelling responses on July 22, 2024. The court notes that in that hearing no warning was given to the Defendant that terminating sanctions may flow for a failure to comply.

As a consequence, this court feels evidentiary sanctions are appropriate.

Disposition

Plaintiff's motion is granted in part and denied in part.

Plaintiff's request for Terminating Sanctions is denied.

Evidentiary Sanctions against the Defendant are granted.

Defendant will be precluded from presenting any affirmative evidence on any topic related to the discovery matters at issue in the court's order on July 22, 2024. Specifically, the Defendant shall not be permitted to present any evidence on issues related to the first sets of requests for admissions, form interrogatories, and document requests that were propounded by the Plaintiff.

Plaintiff to draw Order and file.

15. 9:00 AM CASE NUMBER: N25-2433
CASE NAME: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100) VS. JUG SHOP, INC.
HEARING IN RE: VERIFIED PET. TO CONFIRM
ARBITRATION AWARD & FOR
ATTY FEES
FILED BY: UFCW-NORTHERN CALIFORNIA EMPLOYERS JOINT PENSION TRUST FUND (FUND NO. 100)
TENTATIVE RULING

Petitioner filed a Petition to Confirm Arbitration Award on November 26, 2025. The hearing on the matter is scheduled for January 20, 2026.

The Petition is unopposed, yet there is no indication that Respondent has been served with notice of this hearing.

Disposition

Petition is continued for at least 60 days for Petitioner to serve Respondent.